

It looks unlikely that UK universities are going to get out of the Freedom of Information Act

Cite as: Martin Paul Eve, "It looks unlikely that UK universities are going to get out of the Freedom of Information Act", *eve.gd: Martin Paul Eve*, March 01, 2016, <https://doi.org/10.59348/qwyb3-e0423>.

The recent Green Paper proposed that universities should be excluded from the Freedom of Information Act. As of today, it now looks very unlikely that this will happen.

The review of the FOI act that was published today explicitly states:

- “We also express our opinion that there is no convincing evidence for the exclusion of universities and higher education institutions from the scope of the Act.”
- “The opinion of the Commission is that it continues to be appropriate and important for universities to remain subject to the Act. They are highly important institutions that play a key public role. Although it is correct that the environment in which our universities operate has altered significantly since the Act was going through Parliament, they continue to benefit from large sums of public money (albeit that much of this comes to them indirectly). We found the evidence that the requirements of the Act placed ‘public’ universities at a competitive disadvantage compared with wholly private providers unpersuasive.”

While some will groan, I think this is a good outcome. Universities remain recognized here as *public institutions*.

My thanks, as ever, to Andrew Gray for pointing this out to me.